

Form No:HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Crl. Misc. No.243258/B/2018

Maher Shahbaz Vs. The State etc.

S.No.of order/ Proceeding	Date of order/ Proceeding	Order with signature of judge, and that of parties or counsel, where necessary.
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16.01.2019	Barrister Jamshed Ghias, Advocate for petitioner. Mr. Shabbir Ahmad, DPG. Muhammad Irfan SI with record.
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Through the instant petition the petitioner seeks post-arrest bail in case FIR No.256/18 dated 03.03.2018 registered u/s 302/34, PPC, at P.S. Haji Pura, District Sialkot.

2. The brief allegation against the petitioner as per contents of FIR is that the deceased Muhammad Ikram, who was working with Maher Shahbaz, the petitioner, told his brother on the day of occurrence at about 02:00p.m. that he is not having good terms with Mehar Shahbaz, the petitioner and asked his brother, the complainant to go to the dera of Maher Shahbaz in the evening and took him back at home as he does not want to work with Mehar Shahbaz. At about 07:00p.m., in the evening, the complainant along with witnesses were coming from the dera of Mehar Shahbaz on motorcycle and when reached near TCS Office, they saw the petitioner's car and he while coming out of the car was asking Al-Marroof Booba s/o Maqbool alias Bola Bangali co-accused along with unknown person, who was on motorcycle that Ikram should be done to death, upon which the co-accused Booba made fire-shots with his pistol, which hit the

brother of the complainant, who was sitting on front seat of the car, he became injured and fell down out of the car. The petitioner and other accused fled-away from the scene of occurrence.

3. Heard. Record perused.

4. Record transpired that though the petitioner is nominated in the instant crime report, but the role attributed to him is a proverbial *lalkara* upon the co-accused Booba, who fired different shots with his pistol, which hit the deceased on his body. The crux of the arguments of the learned counsel for the petitioner is that, complainant while appearing before the learned Addl. Sessions Judge, Sialkot himself exonerated the main accused, namely, Al-Marroof Booba s/o Maqbool alias Bola Bangali from the alleged crime by making statement on 19.12.2018, in which he categorically stated that he has nominated the above said co-accused due to misunderstanding. The petitioner was arrested in the instant case on 27.09.2018 and during the course of investigation, nothing was recovered from his possession and the police has opined that the petitioner was not present at the crime scene at the time of occurrence. The report u/s 173 of the Code of Criminal Procedure, 1898 has already been submitted before the learned Trial Court on 30.09.2018 and since then there is no progress in the trial. The petitioner is behind the bar since his arrest and his further incarceration for indefinite period would not serve any useful purpose for the prosecution. As far as section 34, PPC is concerned, it is the learned Trial Court, who would decide the question of common intention while

appreciating the evidence adduced before it by both the sides.

5. In view of the above, this Court found that there are sufficient reasons to believe that the case of the petitioner called further probe into his guilt within the scope of section 497(2) of the Code of Criminal Procedure, 1898.

6. Under the circumstances, this petition is allowed, and the petitioner is admitted to post-arrest bail, subject to his furnishing surety bond in the sum of Rs.2,00,000/- (Rupees two lacs) with one surety in the like amount to the satisfaction of the learned Trial Court.

(Muhammad Waheed Khan)
Judge

Mumtaz

Approved for reporting.

JUDGE